

24STCV20832 24STCV20832

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-07-02

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Case Number: 24STCV20832 Hearing Date: July 2, 2026 Dept: 507

Tentative

Ruling On Motion For New Trial

Judge Nicholas

F. Daum, Department 47

HEARING

DATE: Jul. 2, 2026 TRIAL DATE: NA

CASE: Annette Monjaraz v. Los Angeles Truck
Centers, LLC et al.

CASE

NO.: 24STCV20832

Motion for New Trial

MOVING

PARTY: Plaintiff Annette Monjaraz

RESPONDING

PARTY(S): Defendant

Los Angeles Truck Centers, LLC

TENTATIVE RULING:

Plaintiff's

motion for new trial is DENIED.

Moving Party to give notice.

DISCUSSION:

Monjaraz

sued Defendant, her former employer, for several causes of action related to disability discrimination. The case went

to trial. A jury found in favor of the

Defendant on all causes of action.

Monjaraz now brings this motion for new trial. She makes three arguments.

The Court does not believe that Monjaraz's arguments warrant a new trial.

Asserted Legal Error On Special Verdict Form

Monjaraz's primary argument is that the special

verdict form on plaintiff's second cause of action contained a legal error. According to Monjaraz, the error was

significant enough to require a new trial, at least on the cause of action for

retaliation. The Court does not believe

that there was legal error at all. There

was certainly not error sufficient to warrant a new trial.

Monjaraz's

specific argument is as follows. She notes

that on the retaliation cause of action the jury was asked in question 7 of the

verdict form "Was Annette Monjaraz's request for an accommodation for her

disability a substantial motivating factor for Los Angeles Truck Centers, LLC's

decision to discharge Annette Monjaraz?" The jury answered yes to that

question. In question 8 of the form, the

jury was asked "Even if the request for an accommodation was a substantial

motivating reason for the decision to discharge Annette Monjaraz, would Los

Angeles Truck Centers LLC have discharged Annette Monjaraz at that time anyway

because of uncertainty about when she would be able to return to work?" The

jury answered yes to that question, as well.

Based on the jury's answer to question number 8, the jury answered no

further questions and found in favor of Defendant on the retaliation cause of

action.

Monjaraz argues that question 8 should not have been asked at all. She argues that this was a “pretext” case, not a “mixed motive” case, and that the instruction improperly allowed the jury to improperly find for the Defendant on the basis of “uncertainty.”

More precisely, her argument is this. Special Instruction No. 8, and an accompanying CACI Instruction (No. 2512) were provided to the jury at Defendant’s request, as part of Defendant’s request for a so-called “same decision” “defense” instruction (more precisely, a limitation of remedies). (CACI 2512; see *Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 211 (*Harris*) [“[U]nder the FEHA, when a jury finds that unlawful discrimination was a substantial factor motivating a termination of employment, and when the employer proves it would have made the same decision absent such discrimination, a court may not award damages, backpay, or an order of reinstatement.”].)

Here, Monjaraz argues that there was no basis for a “same decision” instruction. According to Monjaraz the so-called “same decision” was simply an extension of the unlawful discrimination. She notes that, as is undisputed, she suffered a mental disability. That mental disability caused her to request, as accommodations, successive leaves of absences from work. Defendant granted some leaves of absence until ultimately deciding not to extend additional leaves and eventually terminating her. The need to be absent from work, says Monjaraz, was a consequence of her disability.

Put simply, Monjaraz argues that if Defendants terminated her based on “uncertainty about when she would be able to return to work” (in the words of Special Instruction No. 8) that cannot have been a “same decision” made “absent” discrimination (in the language of *Harris*). That is so because (according to Monjaraz) the decision to terminate her based on excessive absence was no more and no less than a termination based on a consequence of her disability.

The Court disagrees with this argument. It does so because Monjaraz’s argument misunderstands Defendant’s position in the case, as well as the facts presented and the governing law. Defendant’s

theory of “same decision” was not that it terminated Plaintiff because of excessive absence derived from her request for reasonable accommodation for her disability. Rather, it was that even if Defendant had granted a reasonable accommodation for disability and allowed her additional time out of the workplace— including extending a leave of absence—Monjaraz still would not have ultimately returned to work. That would be true either because (a) Monjaraz did not want to come back to work at all or (b) because Monjaraz would have been entirely unable to, making any request for a reasonable accommodation pointless because nothing could be reasonably accommodated. Either way, the decision to terminate based on absence would happen regardless of accommodating Monjaraz’s disability. This was the “uncertainty” to which, on the Court’s understanding, Special Instruction No. 8 referred, and it was the basis for instructing the jury with CACI 2512.

Thus, it is simply not true that there is no room for a “same decision” instruction in this case. Defendant had a coherent argument, based on the factual record, that would support a “same decision” instruction. The jury could choose whether or not to accept Defendant’s argument. And it appears that the jury did so.

The evidence at trial supported a conclusion that Monjaraz would not return to work regardless of any accommodation. While it is true (as Monjaraz repeatedly emphasized at trial) that Monjaraz’s last leave request before she was terminated contained a proposed return date, this was just the latest in a number of other return dates, all of which had been missed. Monjaraz’s own trial testimony as to whether she was willing to return and when, and what she told the Defendant about her return was confused. Severely damaging her credibility, Monjaraz testified that “memory is a choice” and that she could selectively choose to remember details about what was or was not told to the Defendant regarding her return. Defendant’s witnesses testified that she had not clearly indicated that she would return.

In the Court’ view, it was appropriate based on this record to provide the jury with CACI 2512 and a special verdict instruction on the same-decision instruction. It was within the jury’s prerogative to choose to believe Defendant and to disbelieve Monjaraz on this issue. Put simply, the jury found that Monjaraz would not and could not have returned to work regardless of her request for an accommodation, and it was entitled to do so.

Indeed, the jury plainly indicated in the Special Verdict form itself that it simply did not believe that Monjaraz could or would return to work. On Plaintiff's first and fourth causes of action for discrimination, the jury found that Monjaraz was not "able to perform the essential functions of the job with reasonable accommodation for her disability." (Special Verdict Questions 3, 13.) This finding strongly suggests that the jury believed that Monjaraz simply was not willing or able to return to work, regardless of any accommodation offered.

Monjaraz cites to no law that supports her argument—at least on anything like the facts of this case.

She cites to three federal cases.

All are from the summary judgment stage, and none deal specifically with a "same decision" defense or argument. (See

Diaz v. Federal Express Corp. (C.D. Cal. 2005) 373 F.Supp.2d 1034, 1064-65;

McMillan v. City of New York (2d Cir. 2013) 711 F.3d 120, 129; McInteer

v. Ashley Distribution Services (E.D. Cal. 2014) 40 F.Supp.3d 1298,

1286.) Rather, all three cases address a

different issue—whether a Defendant could claim for purposes of summary judgment that no discrimination at all occurred because the stated

reason for terminating an employee was absence from work, when, on an

undisputed record, the absence itself was the result of a disability. (See *id.* [all three cases].) These federal cases rightly rejected that

argument. But that argument is not at

issue here. In this case, as

discussed above, the issue is whether the jury could reasonably have concluded

that Defendant would terminate Monjaraz based on a failure to return to work

that would have occurred regardless of Defendants' efforts to accommodate

her disability.

Thus, the Court sees no legal error in providing a

same-decision instruction under CACI 2512.

As for the form of the Special Verdict form, Monjaraz has waived any

ability to assert error. While Monjaraz

did object to CACI 2512, once the Court had indicated that the instruction

would be given, Plaintiff's counsel agreed to (in fact, helped propose) the form

of the verdict form ultimately used.

Accordingly, assuming that it was appropriate to instruct on CACI 2512 or

the same-decision theory at all (and, for the reasons given above, it was) the

Court does not believe that Plaintiff can be heard to reasonably object to the form of Special Verdict Instruction No. 8.

Finally, even if there were legal error in providing Special Verdict Instruction No. 8, the error would not be sufficient to warrant a new trial. Generally, motions for new trial are statutory and highly technical. Motions for new trial can only be granted for one of the reasons identified in Code of Civil Procedure section 657. Even if one of these reasons might apply in a particular case, this Court lacks jurisdiction to grant a motion for new trial on a basis that was not specified in the notice of intention to move for new trial. (*Wagner v. Singleton* (1982) 133 Cal.App.3d 69, 72-73.) Here, the only potentially applicable basis specified in the notice of intention to move for new trial from which the Court might derive the argument about the "same decision" defense discussed above is Code of Civil Procedure section 657, subdivision one, which refers to "Irregularity in the proceedings of the court and abuse of discretion by the Court which prevented Plaintiff from having a fair trial." (Cal. Code Civ. Proc., § 657(1).)[1] Generally, a new trial may only be granted on this ground when the Court's improper instruction amounts "to a miscarriage of justice." (*Soule v. General Motors Corp.* (1994) 8 Cal.4th 548, 580.) Showing a miscarriage of justice, in turn, requires showing "that is reasonably probable that a result more favorable" would have been obtained by the party seeking the new trial "in the absence of the error." (*Cassim v. Allstate Ins. Co.* (2004) 33 Cal.4th 780, 800-701.)

Here, the Court does not see a miscarriage of justice. The jury found, and in the Court's view was entitled to find, that Monjaraz would not and could not have returned to work regardless of any accommodation by Defendant. Any potential instructional error is dwarfed by the jury's fundamental conclusion that no discrimination occurred because no reasonable accommodation could have been provided, due to Monjaraz's own unwillingness or inability to return to work. While the jury did not have to reach this conclusion, it is not a miscarriage of justice for it to have done so. And, given the jury's clear overall conclusions about the case, which reflected the jury's failure to credit Monjaraz's testimony, Monjaraz has not shown that a different result was reasonably probable.

Asserted Error Based on Defendant's Closing Argument

Monjaraz

also argues that a reference to “undue hardship” by defense counsel in closing argument amounted to either “irregularity in the proceedings by an adverse party” (Code of Civil Procedure, § 657(1)) or “[a]ccident or surprise, which ordinary prudence could not have guarded against” (Code of Civil Procedure, § 657(3), and entitles her to a new trial. The Court disagrees.

Some

background is necessary. Monjaraz

proposed, and based on the parties’ stipulation, the Court accepted, a special jury instruction on extended leaves of absence.

The instruction proposed by Monjaraz and ultimately given by the Court contained—at Monjaraz’s own request—the words “undue hardship.”

Originally, Monjaraz

proposed a special instruction that would have provided that “Granting an extended leave of absence (even beyond the required FMLA/CFRA leave period) is a form of reasonable accommodation, provided that it seems likely that the employee will be able to return to work in that position at the end of the leave and holding the position open does not impose an undue hardship on the employer.” (Wheeler Decl., Ex. G.) Defendant objected to this instruction, but after some discussion between the parties, the Court agreed to give a similar instruction, on Monjaraz’s request, in a form proposed by Defendant based on Monjaraz stipulation that the form was acceptable.

That Special Instruction read as follows:

Granting an additional leave of absence after the expiration of FMLA/CFRA leave may be a reasonable accommodation provided that it seems likely that the employee will be able to return to work in that position at the end of the leave. An employer, however, is not required to provide an indefinite leave of absence as a reasonable accommodation. Nor is an employer required to provide a leave of absence or hold a position open if it would impose an undue hardship on the employer.

Thus, both the instruction originally urged by

the Monjaraz and the instruction ultimately given by the Court, based on Monjaraz’s stipulation, used the words “undue hardship.”

Clearly, the issue of undue hardship was something put before the jury, with Plaintiff’s agreement.

Prior

to closing arguments, defense counsel had indicated, and the Court had understood, that the defense did not intend to raise an “undue hardship” affirmative defense. However, that did not change the fact that special instruction No. 1 used the words “undue hardship.”

In closing argument, defense counsel, discussing Special

Instruction No. 1, stated as follows “So does it impose an undue hardship. You know, what’s an undue hardship? Only you know. You’re the jury, you know.” (RT 122:15-17.) Defense counsel also showed a power point presentation using the words, referring to the matters at issue in Special Instruction No. 1.

Monjaraz

objected. The Court originally (and correctly) believed that no error had occurred during closing argument, Monjaraz’s counsel pressed the issue. After extensive argument from counsel, and outside the presence of the jury, the Court provided a further special instruction, Special Instruction No. 3, that specifically defined the term “undue hardship” using the language of the Government Code.

Based

on this record, the Court sees no error in defense counsel's closing argument at all, much less error sufficient to warrant a new trial.

The words “undue hardship” were, based on Monjaraz’s own stipulation, before the jury.

Defense counsel could accurately tell the jury that the issue of undue hardship was for them to decide. Monjaraz cannot have been surprised, much less unduly surprised, by the brief (and accurate) reference to a jury instruction Monjaraz herself had agreed to.

Beyond that, any potential problem with understanding the words “undue hardship” was solved by the Court’s curative instruction, which defined the term (and which Monjaraz does not take issue with in the motion for new trial).

Finally,

Monjaraz has not established that it is reasonably probable that she would have obtained a different result at trial had defense counsel not made the brief reference to the words “undue hardship” in closing argument. As noted above, a new trial is only

appropriate when a miscarriage of justice has been shown. That happens only when it is reasonably probable that a different result would obtain absent the error. Here, defense counsel's offhanded reference to the words "undue hardship" in closing argument likely had no impact on the jury at all. That is particularly true since the jury was also given, based on Monjaraz's own request, a jury instruction using exactly those words that Monjaraz does not challenge. Even if there was some error in defense counsel's closing argument referring to words in an otherwise-proper jury instruction—and there was not—that error could not possibly suffice to warrant a new trial.

CONCLUSION:

Plaintiff's motion
for a new trial is DENIED.

Plaintiff
to give notice.

IT IS
SO ORDERED.

Dated: July 1, 2026 _____

Nicholas
F. Daum

Judge
of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.

[1] The Court does not

agree with Defendants that Monjaraz's failure to cite to a different portion of section 657, dealing with errors of law, dooms her motion on this issue completely. Monjaraz's argument on this point might reveal an "abuse of discretion" by the Court in its instructions and on the special verdict form, and thus the reference to section 657, subdivision (1) in the notice was, in the Court's view, enough to preserve this argument for a motion for new trial.